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LINE 2

22-CIV-00303

AETNA INC VS GILEAD SCIENCES, INC

AETNA INC
GILEAD SCIENCES, INCDANIEL A. SASSE
MICHAEL J SHIPLEY

PLAINTIFF AETNA INC.'S MOTION TO FILE DOCUMENTS UNDER SEAL

TENTATIVE RULING:

The court grants plaintiff Aetna Inc.'s (Aetna) motion to seal portions of Gilead Sciences' (Gilead) Notice of Motion for Summary Adjudication on ASO Claims and Memorandum in Support Thereof, Gilead's Proposed Order Granting Gilead Sciences' Motion for Summary Adjudication on ASO Claims, and thirty-six exhibits submitted in support of the Motion and the exhibits 20, 21, 22, 23, 26, 27, 28, 29, 30, 32, 33, 34, 36, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, and 59, which were lodged conditionally under seal by Gilead Sciences on August 17, 2026:

In this case, Aetna sues defendants Gilead and related entities for alleged Cartwright violations.

The court has already granted previous motions to seal in this case. Now, Aetna seeks to seal portions of Gilead's motion for summary judgment. Because the court anticipates that these documents will be used in other pre-trial motions, the court makes these findings as to the use of these documents in all pretrial documents so that the parties do not need to bring successive motions to seal these documents. This order does not extend to the trial and the court will discuss what documents, if any, will be sealed at trial at a pretrial conference.

Public access to court proceedings is paramount. (Code Civ. Proc., § 124; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1197 (*NBC Subsidiary*)). “[O]pen trials serve to demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings [citation]; ‘[m]ore importantly,’ open trials provide a means, ‘akin in purpose to the other checks and balances that infuse our system of government,’ by which citizens scrutinize and ‘check’ the use and possible abuse of judicial power [citation]; and finally, ‘with some limitations’ [citation], open trials serve to enhance the truth-finding function of the proceeding [citation].” (*NBC Subsidiary*, at pp. 1201–1202, quoting Justice Brennan’s concurring opinion in *Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555 [public access to criminal trial]; see *NBC Subsidiary*, at p. 1211 [concluding same principles apply to civil trials].) “ ‘Popular attendance at trials, in sum, substantially furthers the particular public purposes of that critical judicial proceeding. In that sense, public access is an indispensable element of the trial process itself....’ [Citation.]” (*NBC Subsidiary*, at p. 1202.) Court records are presumed to be open. (Cal. Rules of Court, rule 2.550(c).)

Public access, however, is not absolute. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1217.) Certain types of information are confidential, and the public is not entitled to access that information. (See e.g. *Overstock.com, Inc. v. Goldman Sachs Grp., Inc.* (2014) 231 Cal.App.4th 471, 503.) To balance the competing policies, in order to prohibit the public from seeing certain documents in the court filed, the court must expressly find:

- (1) There exists an overriding interest that overcomes the right of public access to the records;
- (2) The overriding interest supports sealing the records;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550.)

Aetna has demonstrated that it seeks a narrow order sealing documents that seeks to seal documents that reference or contain highly confidential and commercially sensitive information, including proprietary material and non-public trade secrets of Aetna.

The court has reviewed the documents which Aetna requests to be sealed. They are the quintessential documents that the law allows to be sealed—confidential business or financial information and implicate sensitive and confidential medical information related to HIV that would not be public but for the lawsuit and the rules governing discovery. As set forth in the memorandum and declaration of Kari G. Ferver supporting the motion, the documents consisted of non-public contracts or contract related documents with their customers, information on how Aetna sets its commercial premiums, and portions of lists of Aetna's customers; discovery responses and deposition testimony that reference this sensitive information. The documents contain sensitive and non-public financial, business and proprietary information.

After a review of the documents, the court expressly finds:

- (1) There exists an overriding interest that overcomes the right of public access to the records, i.e., confidential and sensitive business and financial information of Aetna and third parties and some documents implicate medical information about HIV, a confidential and sensitive condition;
 - (2) The overriding interest supports sealing the records to protect the parties' interest;
 - (3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;
 - (4) The proposed sealing is narrowly tailored in that only the confidential and sensitive information is redacted; and
-

(5) No less restrictive means exist to achieve the overriding interest.

THE CLERK OF THE COURT IS THUS ORDERED TO SEAL THESE DOCUMENTS. The parties are to make sure that there is a public version of each of the documents which is in the court file.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Aetna shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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LINE 3

22-CIV-03053

ELIZABETH CHUNG, ET AL. VS. DALE WADE, ET AL.

ELIZABETH CHUNG

DALE WADE

MICHELLE AKERMAN

DAVID A. HARRIS

DALE WADE dba WADE & ASSOCIATES' MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

TENTATIVE RULING:

The court GRANTS the three unopposed motions for good faith settlement brought by: defendant and cross-defendant Maiden Stone, Inc. (Maiden Stone); cross-defendant Gambrioli Developments, Inc. (Gambrioli); and cross-defendant Dale Wade dba Wade & Associates (Wade).

When non-settling parties do not oppose a motion on the good faith issue, a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261.) The court does not need to analyze the factors set forth in *Tech-Bilt, Inc. v. Woodward-Clyde Associates* (1985) 38 Cal.3d 448 (*Tech-Bilt*) when the settlements are unopposed. However, each of the settling parties have introduced evidence demonstrating that each of the *Tech-Bilt* factors have been met.

The Hon. Nancy L. Fineman has been the single assigned judge since the inception of the case. Plaintiffs claim that approximately 7,000 square feet of limestone pavers installed in their patio failed. The court notes that it has been a hard-fought case and extensively litigated, including depositions of experts. Resolution of the case occurred on the eve of trial.

Defendant and cross-complainant Maiden Stone, the manufacturer of the pavers, has entered into a settlement agreement with plaintiffs for \$100,000.00. Maiden Stone provides a comprehensive analysis of the facts of the case, the potential liability of others, the potential issues of proof with plaintiff's case, including damages. Maiden Stone demonstrates that its settlement is within the ballpark of its potential liability and that the settlement was negotiated at arms-length. There is no evidence to the contrary. The court finds that Maiden Stone's settlement with plaintiffs was in good faith. The court grants Maiden Stone's request for judicial notice.

Cross-defendant Gambrioli was the general contractor and has settled with plaintiff for \$100,000.00. Gambrioli provides the background of the case and the reasons that it believes that its settlement is in good faith. Based upon its analysis of liability, it believes that it is paying more than its potential liability and its settlement is in the ballpark of its potential liability. There is no evidence to the contrary. Gambrioli also establishes that the settlement was negotiated at arms-length. The court finds that Gambrioli's settlement with plaintiffs is in good faith.
